

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
CORNELL BUSSEY,

Summons

Plaintiffs

INDEX NO.

-against-

P.o. Thomas Giannakopoulos and
Sgt. Erik Hanson, P.o. David Ciangulli.

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To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Plaintiff designates NEW YORK County as the place of trial. The basis of venue is residence of Plaintiff.

Plaintiff resides at: 211 West 45th Street, New York, N.Y.,

Defendants' address is: One Police Plaza, New York, N.Y. 10007

NOTICE: This action is to recover damages for injuries to plaintiff caused by the defendant's negligence. The relief sought is monetary damages.

Upon your failure to appear, judgment will be taken against you by default for an amount to be determined, with interest and the costs of this action.

Dated: June 9, 2019



ROBERT MARINELLI, ESQ
305 Broadway-Suite 1001
New York, N.Y. 10007
212-822-1247

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
CORNELL BUSSEY,

Plaintiffs

COMPLAINT

INDEX NO.

-against-

P.o Thomas Giannakopoulos,
Sgt. Erik Hanson, and P.o. David Ciangulli,.
-----X

PLEASE TAKE NOTICE that plaintiff, by his attorney, ROBERT J. MARINELLI, alleges the following, upon information and belief:

Preliminary Statement

1. This is an action for damages arising from the imprisonment and prosecution of plaintiff Bussey ("plaintiff"). Plaintiff was arrested and subjected to various criminal charges on June 9, 2016, without probable cause and in violation of his rights under federal law.
2. On June 9, 2016, POLICE OFFICER David Ciangulli ("CIANGIULLI"), Shield No. 16585; Thomas Giannakopoulos ("Thomas") and Erik Hanson ("Hanson"), (collectively "defendants"), acting within the scope of their employment and under the authority of the CITY OF NEW YORK ("CITY") and the NEW YORK CITY POLICE DEPARTMENT ("NYPD") falsely arrested, maliciously prosecuted, failed to intervene, and made false allegations to the New York County District Attorney's Office with respect to plaintiff.

4. Plaintiff Bussey seeks compensatory and punitive damages, attorneys' fees and costs with respect to the claims arising under federal law, and such other and further relief as the court deems just and proper.

JURISDICTION AND VENUE

5. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988, and the Fourth and Fourteenth Amendments to the Constitution of the United States.

6. The jurisdiction of this Court is predicated upon 28 U.S.C. §§ 1331, 1343 and 1367(a).

7. Venue is proper in this district pursuant to 28 U.S.C. §§ 1391 (b) and (c).

8. The cause of action arose within New York County, within the State of New York.

PARTIES

9. Plaintiff Bussey is a resident of New York County

10. At all times hereinafter mentioned, plaintiff BUSSEY is a natural person residing in Brooklyn, N.Y.

11. At all times hereinafter mentioned, Ciangulli, Thomas, and Hanson, (collectively "defendants") were police officers, employees and agents of the City of New York, acting within the scope of his employment and under color of state law. Thomas and Hansen are sued in their official and individual capacities.

12. At all times hereinafter mentioned, defendants were police

officers, employees and agents of the CITY, acting within the scope of their employment and under color of state law, whose names and identities are

13. At all times hereinafter mentioned, defendant NYPD was an agency of the CITY.

14. At all times hereinafter mentioned, defendant CITY was a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

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STATEMENT OF FACTS

15. On June 9, 2016 at approximately 10:00 p.m. plaintiff was lawfully in the vicinity of 690 8th Avenue when he was stopped by defendants.

16. Defendants never saw plaintiff commit any crime or violation, nor had plaintiff committed a crime or violation.

17. Nevertheless, defendants grabbed plaintiff, put him in handcuffs and transported him to the precinct.

18. At the precinct, plaintiff was forced to strip and have the intimate areas of his body examined.

18. At the precinct the officers falsely informed employees of the New York County District Attorney's Office that plaintiff had been observed committing a crime, selling crack.

20. Ultimately, plaintiff was taken to New York Central Booking.

21. Bail was set at arraignment and plaintiff was taken to Rikers

Island where he remained for six days.

22. After plaintiff's release from custody, all charges against him were dismissed.

22. Plaintiff suffered damage as a result of defendants' actions. Plaintiff was deprived of his liberty, suffered emotional distress, mental anguish, fear, pain, bodily injury, anxiety, embarrassment, humiliation, and damage to his reputation.

FIRST CLAIM
42 U.S.C. SECTION 1983

24. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

25. Defendants, by their conduct toward plaintiff alleged herein, violated plaintiff's rights guaranteed by 42 U.S.C. § 1983, the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

26. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages herein before alleged.

SECOND CLAIM
FALSE ARREST

27. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

28. By their conduct, as described herein, and acting under color of state law, defendants are liable to plaintiff under 42 U.S.C. § 1983 for the violation of his constitutional right to be free

from malicious prosecution under the Fourth and Fourteenth Amendments to the United States Constitution.

29. Defendants' unlawful actions were done willfully, knowingly, with malice and with the specific intent to deprive plaintiff of his constitutional rights. The prosecution by defendants of plaintiff constituted false arrest in that there was no probable cause for the plaintiff's arrest, yet defendants placed him under arrest.
30. As a direct and proximate result of defendants' unlawful actions, plaintiffs have suffered, and will continue to suffer, damages, including physical, mental and emotional injury and pain, mental anguish, suffering, humiliation, embarrassment and loss of reputation.

THIRD CLAIM
MALICIOUS PROSECUTION

38. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.
32. By their conduct, as described herein, and acting under color of state law, defendants are liable to plaintiff under 42 U.S.C. § 1983 for the violation of his constitutional right to be free from malicious prosecution under the Fourth and Fourteenth Amendments to the United States Constitution.

33. Defendants' unlawful actions were done willfully, knowingly, with malice and with the specific intent to deprive plaintiff of his constitutional rights. The prosecution by defendants of plaintiff constituted malicious prosecution in that there was no basis for the plaintiff's arrest, yet defendants continued with the prosecution, which was resolved in plaintiff's favor.

34. As a direct and proximate result of defendants' unlawful actions, plaintiffs have suffered, and will continue to suffer, damages, including physical, mental and emotional injury and pain, mental anguish, suffering, humiliation, embarrassment and loss of reputation.

FOURTH CLAIM
DENIAL OF THE RIGHT TO A FAIR TRIAL

39. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

35. The individual defendants created false evidence against Plaintiff.

36. The individual defendants forwarded false evidence to prosecutors in the Kings County District Attorney's office.

37. In creating false evidence against Plaintiff, and in forwarding false information to prosecutors, the individual defendants violated Plaintiff's constitutional right to a fair trial under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

38. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FIFTH CLAIM
FAILURE TO INTERVENE

35. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

36. Those defendants who were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

37. Accordingly, the defendants who failed to intervene violated the First, Fourth, Fifth and Fourteenth Amendments.

38. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

Prayer for Relief

Wherefore, plaintiff demands judgment against defendants as follows:

- a) Compensatory damages;
- b) Punitive damages;
- c) Attorneys' fees and costs pursuant to 42 U.S.C. §1983;
- d) Interest, costs and disbursements;
- e) Other and further relief as the court deems proper.

A jury trial is hereby demanded.



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New York, N.Y.
June 9, 2019